

**SUBSTITUTE FOR
HOUSE BILL NO. 5514**

A bill to prohibit youth transportation companies from using certain restraints while transporting youths to certain youth residential treatment programs; to provide exceptions; to provide civil sanctions; and to provide for the powers and duties of certain state and local governmental officers and entities.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 1. This act may be cited as the "preventing restraints in
2 youth transport act".

3 Sec. 3. As used in this act:

4 (a) "Youth" means a minor child as that term is defined in
5 section 1 of 1973 PA 116, MCL 722.111.

6 (b) "Youth residential treatment program" means each location
7 of a facility or program operated by a public or private entity



1 that does all of the following with respect to 1 or more youth who
2 are unrelated to the owner or operator of the facility or program:

3 (i) Provides a residential environment including, but not
4 limited to, any of the following:

5 (A) A program with a wilderness or outdoor experience,
6 expedition, or intervention.

7 (B) A boot camp experience or other experience designed to
8 simulate characteristics of basic military training or correctional
9 regimes.

10 (C) An education or therapeutic boarding school.

11 (D) A behavioral modification program.

12 (E) A residential treatment center or facility.

13 (F) A qualified residential treatment program as that term is
14 defined in 42 USC 672.

15 (G) A psychiatric residential treatment program that meets the
16 requirements of 42 CFR part 441.

17 (H) A group home serving children and youth placed by any
18 placing authority.

19 (I) An intermediate care facility for individuals with
20 intellectual disabilities.

21 (J) Any residential program that is utilized as an alternative
22 to incarceration for justice involved youth, adjudicated youth, or
23 delinquent youth.

24 (ii) Serves youths who have a history or diagnosis of any of
25 the following:

26 (A) An emotional, behavioral, or mental health disorder.

27 (B) A substance misuse or use disorder, including alcohol
28 misuse or use disorders.

29 (C) An intellectual, developmental, physical, or sensory



1 disability.

2 (c) Youth residential treatment program does not include any
3 of the following:

4 (i) A hospital licensed by this state.

5 (ii) A foster family home that does any of the following:

6 (A) Provides 24-hour substitute care for children placed away
7 from their parents or guardians and for whom the department of
8 health and human services has placement and care responsibility.

9 (B) Is licensed and regulated by this state as a foster family
10 home.

11 (d) "Youth transportation company" means a business that
12 specializes in transporting a youth to a youth residential
13 treatment program.

14 Sec. 5. Except as otherwise provided in subdivision (c) and
15 section 7, a youth transportation company may not use any of the
16 following devices on a youth when the final intended destination is
17 a youth residential treatment program:

18 (a) Visual impairment, including blindfolds and hoods.

19 (b) Mechanical restraints, including handcuffs, chains, irons,
20 straitjackets, cloth restraints, leather restraints, plastic
21 restraints, or similar items.

22 (c) Physical restraints, including holds, or other use of
23 physical force to restrict free movement, unless both of the
24 following apply:

25 (i) The use of physical restraints is necessary due to a
26 substantial likelihood of imminent serious physical harm to the
27 youth or others.

28 (ii) There are no less restrictive alternatives that will
29 alleviate the substantial likelihood of imminent serious physical



1 harm to the youth or others.

2 Sec. 7. A youth transportation company staff may use physical
3 restraints on a youth if all of the following apply:

4 (a) The staff have been adequately trained in restraint device
5 usage.

6 (b) The restraints are necessary due to a substantial
7 likelihood of imminent serious physical harm to the youth or
8 others.

9 (c) The restraints are used only as long as the imminent risk
10 persists.

11 Sec. 9. A youth transportation company shall not pick up a
12 youth for transportation to a youth residential treatment program
13 between the hours of 9 p.m. and 6 a.m. This section does not
14 prohibit a youth transportation company from transporting a youth
15 during the times described in this section.

16 Sec. 11. (1) A person that violates this act is subject to a
17 civil fine of not more than \$1,000.00. The prosecutor of the county
18 in which the violation occurred, or the attorney general may bring
19 an action to collect the fine.

20 (2) An action under this act must be filed within 10 years
21 after the date the violation occurred.

